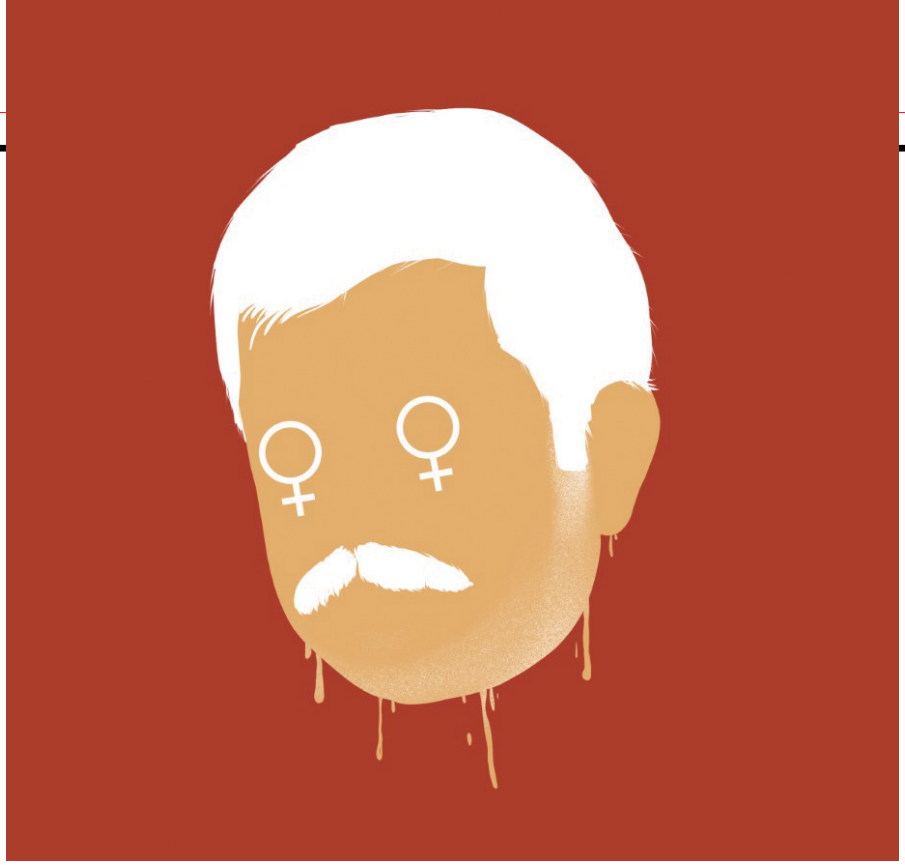


Illustration by SIDDHANT JUMDE

KERALA/ SEXUAL HARASSMENT CASE

'PROVOCATIVE' JUDGMENTS

By Jeemon Jacob

The two victims are Dalit social activists, and the accused is a 74-year-old social reformer and cultural icon in Kerala who, ironically, often speaks for Dalit causes—and, to deepen the irony, had recently commented on the state's sexual conservatism. Kerala has been keenly following the scandal ever since the first victim, a 30-year-old publisher from Koyilandy in north Kerala, narrated her ordeal on social media. The septuagenarian 'Civic' Chandran had tried to force himself on her during an event at a beach in her home town on February 8, 2020, she said. The second case was more recent: a 42-year-old Dalit schoolteacher-writer has accused Chandran of making sexual advances on her during a book exhibition on April 17.

What would have been a local issue made national headlines after Kozhikode district sessions judge S. Krishnakumar, while granting Chandran's anticipatory bail plea in the first case on August 12, observed that Section 354A of the IPC (relating to sexual harassment) cannot be applied since the victim had been "wearing a sexually provocative dress" and also because she could not satisfactorily explain the two years' delay in filing the complaint. The Kerala High Court has now intervened on an appeal by the state government, and cancelled the bail plea while granting Chandran relief from arrest, for now, considering his advanced age. The high court also took the sessions court to task, saying the order was "irregular" and "irrelevant material was considered" to grant bail.

Earlier, Krishnakumar's remarks had shocked Kerala with political leaders, activists and the legal fraternity flaying the judgment as "reactionary" and "against recent Supreme Court orders". It also brought into focus his earlier order, on August 2, in the second case of alleged sexual abuse relating to the 42-year-old Dalit teacher, where he had granted bail saying the "offences under the Scheduled Caste and Scheduled Tribe (Prevention of Atrocities) Act will not prima facie stand against the accused". The judge's order stated that it was "highly unbelievable that he [Chandran] will touch the body of the victim fully knowing that she is a member of the SC. In order to attract the offence under the Act, it has to be established that the act of the accused was with the knowledge that the victim was an SC/ST".

CHANDRAN, A CULTURAL ICON IN KERALA, FACES SEXUAL HARASSMENT CHARGES BY TWO WOMEN

The Left Front-led state government had immediately filed an appeal in the HC saying the judge's conclusions were without legal basis, and that custodial interrogation of the accused was needed to get to the bottom of the case.

Dr Sebastian Paul, a fellow Left traveller and ex-MP, ripped into Krishnakumar's orders. "The judgment is almost Victorian in its attempt to place the accused above the law, especially when the victims are Dalits. Is social status, advanced age